

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Squad #10	CCRB Case #: 201602545	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 03/21/2016 12:00 AM, Friday, 03/25/2016 1:13 PM	Location of Incident: in front of 180 Woodruff Avenue; inside the 70th Precinct stationhouse	18 Mo. SOL 9/25/2017	Precinct: 70
Date/Time CV Reported Sat, 03/26/2016 12:11 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 03/26/2016 12:11 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Carlo Cassata	4950	954614	PBBS
2. POF Melissa Depalma	10283	954723	PBBS

Officer(s)	Allegation	Investigator Recommendation
A . POF Melissa Depalma	Abuse: In front of 180 Woodruff Avenue in Brooklyn, Police Officer Melissa Depalma questioned § 87(2)(b)	A . Exonerated
B . POM Carlo Cassata	Abuse: In front of 180 Woodruff Avenue in Brooklyn, Police Officer Carlo Cassata questioned § 87(2)(b)	B . Exonerated
C . POM Carlo Cassata	Discourtesy: In front of 180 Woodruff Avenue in Brooklyn, Police Officer Carlo Cassata spoke discourteously to § 87(2)(b)	C . Exonerated
D . POM Carlo Cassata	Force: In front of 180 Woodruff Avenue in Brooklyn, Police Officer Carlo Cassata used physical force against § 87(2)(b)	D . Exonerated
E . POM Carlo Cassata	Abuse: Inside the 70th Precinct stationhouse, Police Officer Carlo Cassata did not obtain medical treatment for § 87(2)(b)	E . Unsubstantiated

Case Summary

On March 25, 2016, at 12:47 a.m., an anonymous female called 911 to report a male that was threatening and harassing women as they walked by in front of a bodega at 180 Woodruff Avenue in Brooklyn. The caller described the male black; wearing a black hoodie, glasses and a fitted black hat; and sitting at a table playing chess (Board Review 05). At approximately 1:15 p.m., PO Carlo Cassata and PO Melissa DePalma, of the 70th Precinct, received the radio run and responded to the location, where they approached § 87(2)(b) who was seated at a chess table (**Allegation A and B**). The officers told § 87(2)(b) that they had received a call regarding harassment, and asked § 87(2)(b) to leave. § 87(2)(b) argued with the officers and told them that they were harassing her. PO Cassata allegedly said, “Get this fucking chessboard outta here,” and “Get that shit outta here because next time I come on the block, there’s gonna be a problem.” He further allegedly told § 87(2)(b) “Get the fuck off the block” (**Allegation C**). A crowd of approximately 15 people gathered to watch § 87(2)(b)’s interaction with the officers. The officers decided that they were going to issue § 87(2)(b) a summons for § 87(2)(b). PO Cassata asked for § 87(2)(b)’s identification, but she refused. PO Cassata made this request multiple times, and allegedly told § 87(2)(b) “Gimme your fucking ID” (**Allegation C continued**). § 87(2)(b) tried to walk away from the officers, eastbound on Woodruff Avenue, but they caught up with her and effected her arrest. PO Cassata allegedly jumped on § 87(2)(b)’s back, and tackled her to the ground (**Allegation D**). § 87(2)(b) resisted being handcuffed and put her hands beneath her body while she was on the ground. When § 87(2)(b) was placed in the RMP, her legs remained outside of the vehicle. PO DePalma attempted to place § 87(2)(b)’s legs securely into the RMP, and § 87(2)(b) allegedly kicked her in the face. PO Cassata then attempted to place § 87(2)(b)’s legs inside the RMP, at which point he allegedly kicked her leg twice (**Allegation D continued**). § 87(2)(b) was arrested for § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b) (Board Review 12).

§ 87(2)(b) alleged that at the stationhouse, when PO Cassata was fingerprinting her, she told him that she needed to go to the hospital, and he ignored her request (**Allegation E**).

There is no available video footage that captures this incident.

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to § 87(2)(b)’s open criminal case regarding her arrest on the incident date.
- On June 22, 2016, an inquiry was sent to the NYC Comptroller’s Office regarding whether § 87(2)(b) or § 87(2)(b) has filed a notice of claim regarding this incident. Results are pending and will be included in the case file upon their receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This complaint is the first complaint § 87(2)(b) or § 87(2)(b) has filed with the CCRB (Board Review 25 and 26).
- PO Cassata and PO DePalma have been members of the NYPD for two years, and the allegations in this case are the first CCRB allegations against either of them (Board Review 27 and 28).

Civilian Contact Attempts

- § 87(2)(b) the complainant in this case, was called five times, and was left a voicemail each time that she did not answer. When § 87(2)(b) answered the phone, she said she would contact the investigator after 4/10/16 to schedule an interview at the CCRB. § 87(2)(b) was also mailed two please call letters, neither of which was returned to the CCRB marked as undeliverable. § 87(2)(b) failed to contact the CCRB.
- § 87(2)(b)'s sister, § 87(2)(b) who witnessed this incident, missed a previously scheduled appointment at the CCRB without calling beforehand to cancel or reschedule. § 87(2)(b) was called five times, but did not schedule an additional appointment at the CCRB due to her work schedule. § 87(2)(b) was left a voicemail each time she did not answer on the phone. On June 22, 2016, § 87(2)(b) contacted the investigator to schedule an interview for § 87(2)(b) that afternoon, but § 87(2)(b) called the investigator to notify that she could not make the appointment, and she was unable to schedule a future appointment at the CCRB.
- The 911 caller from the pertinent event was called two times, and left voicemails requesting a call back. A CLEAR search connected the 911 caller's number to the name § 87(2)(b), and listed an address for her, at which she was mailed two please call letters, both of which were returned to the CCRB marked as undeliverable.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

- § 87(2)(g) [REDACTED]

Allegation A—Abuse of Authority: In front of 180 Woodruff Avenue in Brooklyn, Police Officer Melissa DePalma questioned § 87(2)(b)

Allegation B—Abuse of Authority: In front of 180 Woodruff Avenue in Brooklyn, Police Officer Carlo Cassata questioned § 87(2)(b)

PO Cassata and PO DePalma responded to the location due to a 911 call regarding an individual—described as a black male—harassing woman as they walked by. The suspect was reported to be wearing a black hoodie, glasses, and a black fitted hat; and was seated at the chess table. It is undisputed that § 87(2)(b) was seated at the chess table upon the officer’s arrival. § 87(2)(b) testified that she had been sitting at the table for about a half an hour prior to the officers’ arrival, which indicates that she was seated there when the caller called 911. § 87(2)(b) reported that at the time of this incident, she wore a blue sweater, black sneakers and a black du rag on her head. By all accounts, § 87(2)(b) was the only person seated at the chess table; § 87(2)(b) and PO Cassata testified that § 87(2)(b) s sister § 87(2)(b) was standing nearby § 87(2)(b) but PO DePalma testified that § 87(2)(b) approached while § 87(2)(b) was already interacting with the officers. PO Cassata testified that upon his arrival at the location, he intended to issue § 87(2)(b) a warning. He wanted to inform her that the officers had received a call regarding harassment at the location, and instruct her to leave to avoid any further problem. PO DePalma testified that the officers approached § 87(2)(b) to ask her whether she was okay or had seen anything pertinent to the 911 call.

§ 87(2)(g) [REDACTED]

PO DePalma denied that § 87(2)(b) was the target of the officers’ investigation when they approached her, and believed that the officers made this clear to § 87(2)(b). During his CCRB interview, PO Cassata was asked whether he believed

that the 911 call was made in reference to § 87(2)(b) and he said, “It could have been made in regards to anyone who was there.” However, he also testified that there was initially no one else present besides § 87(2)(b) and a third individual, whose identity he could not recall. When asked whether the officers took any action to find the subject of the 911 call, PO DePalma said that they went into a deli and looked for the male in question, but did not find anyone. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Cassata testified that his sole intention was to issue a warning to § 87(2)(b). By all accounts, when PO Cassata asked her to leave the location, § 87(2)(b) became agitated and refused to leave. As § 87(2)(b) argued with the officers, a crowd began to gather on the street to watch what was going on. It is undisputed that the members of the crowd were yelling at the officers. It is undisputed that PO DePalma’s radio was knocked to the ground, and she and PO Cassata both testified that a member of the crowd smacked it out of her hand when she was about to call for back up. PO DePalma believed that a civilian bystander had called 911, and this is corroborated by the pertinent, which indicates that at 1:24 p.m., a female caller reported that officers were being attacked at the location by a crowd of 15 people. Although § 87(2)(b) testified that she did not say anything to the members of the crowd, PO Cassata and PO DePalma testified that she yelled to them to egg them on. PO DePalma testified that the officers instructed § 87(2)(b) to leave because they wanted to clear the crowd off of the street.

After § 87(2)(b) refused to leave, and the crowd gathered, the officers decided to issue her a summons for § 87(2)(b). It was only at that point that PO Cassata asked her to provide identification, and she refused, which prompted the officers to handcuff her and remove her to the stationhouse.

A police officer needs only an objective credible reason to approach an individual and request information. In order to obtain explanatory information via a common-law inquiry, which may include questions of a more accusatory nature or tone, an officer must have founded suspicion that criminality is afoot. An officer may stop an individual when he has reasonable suspicion that said individual has committed; is committing, or about to commit a crime. *People v. DeBour*, 40 N.Y.2d (1976) (Board Review 18). An anonymous caller’s 911 call regarding a possible crime affords police officers with the common-law right to make an inquiry regarding the crime in question. *People v. Pinckny*, 188 Misc. 2d 680, (Sup Ct., Bronx Co. 2001) (Board Review 19). A common-law inquiry allows only for a brief detention for the purpose of obtaining explanatory information. Reasonable suspicion of the defendant’s commission of a crime is necessary to forcibly detain said defendant for investigation. *People v. Lee*, 96 A.D.3d 1522 (4th Dept. 2012) (Board Review 20).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

_____ it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C—Discourtesy: In front of 180 Woodruff Avenue in Brooklyn, Police Officer Carlo Cassata spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that when PO Cassata told her to leave, he made remarks along the lines of, “Get this fucking chessboard outta here,” “Get that shit outta here because next time I come on the block, there’s gonna be a problem,” “Get the fuck out of here,” and, “Get the fuck off the block.” PO Cassata did not recall making any profane comment regarding the chessboard. He denied that he told § 87(2)(b) to get the “fuck” out of there. PO DePalma did not know whether PO Cassata made any of the alleged profane statements.

It is undisputed that PO Cassata informed § 87(2)(b) that he was requesting her identification because he was going to issue her a summons. It is also undisputed that § 87(2)(b) refused to provide her identification despite PO Cassata's repeated requests for it. As mentioned above, while § 87(2)(b) was refusing to provide her identification, more people were joining the crowd and yelling at the officers. § 87(2)(b) alleged that when asking for her identification, PO Cassata told her, "Gimme your fucking ID." PO Cassata did not recall whether he used profanity when asking for § 87(2)(b)'s identification and PO DePalma did not know whether he did so.

PO Cassata acknowledged that he became agitated due to § 87(2)(b)'s refusal of his commands, and the added interjections of the crowd. PO DePalma also testified that she could tell PO Cassata was agitated due to the tone and volume of his voice. § 87(2)(g)

An officer's use of an expletive in a verbal command is not considered to be actionable misconduct if it is used to facilitate cooperation rather than as a gratuitous and disrespectful remark. *NYPD v. White*, OATH Index No. 78667/03 (October 7, 2004) (Board Review 21). The courts have consistently held that the use of profanity to promote a civilian's cooperation toward a legitimate law enforcement purpose—including specifically to encourage a civilian to produce identification upon multiple requests—does not constitute misconduct. *NYPD v. Dukes*, OATH Index Nos. 1137-38/00 (April 26, 2000) (Board Review 22). Additionally, the circumstances of a stressful street enforcement situation may preclude a police officer's use of profanity from being considered a disciplinary offense. *NYPD v. Ebanks*, Disciplinary Case No. 76079/00 (February 22, 2002) (Board Review 23).

§ 87(2)(g)

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation C** be closed as exonerated.

Allegation D—Force: In front of 180 Woodruff Avenue in Brooklyn, Police Officer Carlo Cassata used physical force against § 87(2)(b)

Because § 87(2)(b) refused to provide her identification, the officers could no longer issue her a summons. Instead, they attempted to handcuff her so she could be transported to the stationhouse. It is undisputed that § 87(2)(b) resisted arrest. She testified that after PO Cassata told her to provide her identification so that he could issue her a summons, she told him that she would not provide identification, and began walking away eastbound on Woodruff Avenue. As she was walking, she felt PO Cassata jump on her back and tackle her to the ground. § 87(2)(b) said that at that point, she tried to ease herself down to the ground, but once she was on the ground and felt the officers trying to handcuff her, she kept her arms beneath her body.

PO Cassata testified that he instructed § 87(2)(b) to put her hands behind her back, and she refused this order as well. He then reached for § 87(2)(b)'s arms to cuff her, and she began to flail her arms. She also tried to run away, and when she was unsuccessful,

PO DePalma and PO Cassata testified that after § 87(2)(b) kicked PO DePalma in the face, PO Cassata was reticent to crouch down and move § 87(2)(b)'s legs into the vehicle for fear that she would kick him as well. As an alternative, PO Cassata used his foot to nudge § 87(2)(b)'s legs into the vehicle. PO Cassata and PO DePalma denied that PO Cassata kicked § 87(2)(b)'s leg; he used his foot to guide her legs into the RMP.

§ 87(2)(b) did not sustain any injury as a result of this incident.

Patrol Guide Procedure 221-01 mandates that police officers only use force that is reasonable given the prevailing circumstances. Police officers must avoid the use of force via the employment of de-escalation techniques to gain the voluntary compliance of the civilian subject. However, in the event that it becomes unsafe or ineffective to use only these techniques, officers may resort to actions of force deemed reasonable by an analysis of various factors at hand. These factors include the nature and severity of the crime or circumstances; the subject's actions and their duration; the perceived threat to the subject, officers, and bystanders; the subject's efforts to resist arrest or escape; number of officers relative to number of subjects; the size, age, and condition of the subject to the officers; subject's history of violence; presence of hostile crowd or agitators; the apparent influence on the subject of any stimulant or narcotic that could affect the subject's pain tolerance or capacity for violence (Board Review 24).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. It is therefore recommended that **Allegation D** be closed as **exonerated**.

Allegation E—Abuse of Authority: Inside the 70th Precinct stationhouse, Police Officer Carlo Cassata did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that at the 70th Precinct stationhouse, while PO Cassata was fingerprinting her pursuant to her arrest, she told him that she needed to go to the hospital, but he

ignored her request. § 87(2)(b) reported that she had been vomiting due to a foul-smelling spray that someone had been spraying in the stationhouse. PO Cassata testified that at the stationhouse, § 87(2)(b) continued to yell and scream; and she spat on the floor, but he denied that she was vomiting. PO Cassata denied that § 87(2)(b) ever mentioned or requested medical treatment. PO DePalma testified that at the stationhouse, she brought § 87(2)(b) to the desk, and then lodged her in the cells. PO DePalma did not hear § 87(2)(b) make any request for medical treatment to any officer. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b). It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date